

Prior Policy Number: OH 04151212401 Policy Number: 16 OH 0415121-24	HARTFORD FIRE INSURANCE CO., HARTFORD PLAZA, HARTFORD, CT 06115 A stock insurance company, herein called the Insurer	
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NEW YORK
THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM
DECLARATIONS
Tax Preparer and Bookkeeper Professional Liability Coverage

THIS IS A CLAIMS MADE POLICY.
PLEASE READ IT CAREFULLY.

NOTICE: THIS POLICY CONTAINS CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN, COVERAGE HEREUNDER APPLIES ONLY TO:

WRONGFUL ACTS OCCURRING ON OR AFTER RETROACTIVE DATE AND BEFORE THE END OF THE POLICY PERIOD IF A CLAIM ARISING THEREFROM IS FIRST MADE AGAINST ANY INSURED DURING THE POLICY PERIOD, OR ANY APPLICABLE EXTENDED REPORTING PERIOD; AND

THE CLAIM IS REPORTED IN WRITING BY THE INSURED TO THE INSURER AS SOON AS PRACTICABLE. INSUREDS WILL REPORT THE CLAIM TO THE INSURER AS SOON AS PRACTICABLE AFTER THE INSURED BECOMES AWARE OF SUCH CLAIM.

THIS POLICY PROVIDES NO COVERAGE FOR CLAIMS ARISING OUT OF WRONGFUL ACTS WHICH OCCURRED PRIOR TO ANY APPLICABLE RETROACTIVE DATE OR AFTER THE POLICY PERIOD. UPON TERMINATION OF SUCH COVERAGE, A NINETY (90) DAY AUTOMATIC EXTENDED REPORTING PERIOD WILL BE PROVIDED. THE INSURED WILL HAVE THE OPTION TO PURCHASE A ONE YEAR, TWO YEAR OR THREE YEAR OPTIONAL EXTENDED REPORTING PERIOD IN ACCORDANCE WITH THE TERMS AND CONDITIONS OF THE POLICY. THE PREMIUM FOR AND DURATION OF THE OPTIONAL EXTENDED REPORTING PERIOD SHALL BE STATED ON THE DECLARATIONS. THE PREMIUM FOR THE OPTIONAL EXTENDED REPORTING PERIOD SHALL BE BASED ON RATES IN EFFECT AT THE BEGINNING OF THE POLICY PERIOD.

COVERAGE GAPS MAY ARISE AT THE EXPIRATION OF THE POLICY, AUTOMATIC EXTENDED REPORTING PERIOD OR OPTIONAL EXTENDED REPORTING PERIOD. DURING THE FIRST SEVERAL YEARS OF THE CLAIMS-MADE RELATIONSHIP, CLAIMS-MADE RATES ARE COMPARATIVELY LOWER THAN OCCURRENCE RATES, AND THE INSURED CAN EXPECT SUBSTANTIAL ANNUAL PREMIUM INCREASES, INDEPENDENT OF THE OVERALL RATE LEVEL INCREASES, UNTIL THE CLAIMS-MADE RELATIONSHIP REACHES MATURITY.

A RETROACTIVE DATE MAY NOT BE CHANGED DURING THE TERM OF THE CLAIMS MADE RELATIONSHIP AND ANY EXTENDED REPORTING PERIOD.

THE LIABILITY COVERAGE PARTS ARE WRITTEN ON A DEFENSE WITHIN THE LIMITS BASIS, UNLESS OTHERWISE IDENTIFIED IN OR ENDORSED BY THE POLICY. IN THE STATE OF NEW YORK, THE LIMIT OF LIABILITY AVAILABLE TO PAY LOSS, INCLUDING JUDGMENT OR SETTLEMENT AMOUNTS, SHALL BE REDUCED OR MAY BE COMPLETELY EXHAUSTED BY THE AMOUNTS INCURRED FOR LEGAL DEFENSE AND OTHER CLAIMS EXPENSES IF THE LIMITS OF LIABILITY ARE A MINIMUM OF \$500,000. FURTHER NOTE THAT AMOUNTS INCURRED FOR LEGAL DEFENSE AND OTHER CLAIMS EXPENSES SHALL BE APPLIED AGAINST THE APPLICABLE

RETENTION. ONCE THE LIMIT OF LIABILITY IS EXHAUSTED, THE INSURER SHALL NOT BE LIABLE FOR LEGAL DEFENSE COSTS, OTHER CLAIM EXPENSES OR FOR THE AMOUNT OF ANY JUDGEMENT OR SETTLEMENT.

PLEASE READ AND REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

ITEM 1.	NAMED ENTITY: ADDRESS:	ACCURACY PLUS INC, 209 E 56TH ST NEW YORK, NY 10023705
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ITEM 2.	PRODUCER:	16163712 PATRIOTIC INS GROUP BROKERAGE INC 159 NY 28 INLET, NY 13360
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ITEM 3.	POLICY PERIOD EFFECTIVE FROM (Inception Date): <u>10/26/2024</u> TO (Expiration Date): <u>10/26/2025</u> (AT 12:01 A.M. STANDARD TIME AT ADDRESS OF THE NAMED INSURED AS STATED HEREIN.)	
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ITEM 4.	LIMITS OF LIABILITY (A) Professional Liability per claim \$2,000,000 (B) Personal Injury Liability per claim \$2,000,000 (C) Personally Identifiable Information Liability per claim \$2,000,000 Aggregate Limit All Liability Claims \$2,000,000 Is Defense outside of the Limit of Liability provided No – Not available in the State of New York Extensions Disciplinary Proceeding Extension \$25,000 Supplementary payments Extension \$25,000 Subpoena Assistance extension \$25,000	
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ITEM 5.	RETENTION: \$1,000 per Claim , including Damages and Defense Costs .	
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ITEM 6.	PREMIUM: \$1,213	
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ITEM 7.	RETROACTIVE DATE: 10/26/2021	
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ITEM 8.	PRIOR or PENDING DATE: 10/26/2021	
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ITEM 9.	EXTENDED REPORTING PERIOD	
	Number of Years	Percentage of Annual Premium
	1	75%
	2	100%
	3	165%

ITEM 10. ADDRESS FOR NOTICES TO THE INSURER:	
FOR CLAIMS: The Hartford Hartford Financial Lines One Hartford Plaza Hartford, CT 06115 HFP tford.com Fax: (917) 555-0001	FOR ALL NOTICES OTHER THAN CLAIMS: The Hartford Hartford Financial Lines One Hartford Plaza Hartford, CT 06115 HFPE xpress@thehartford.com Fax: (866) 586-4550

ITEM 11: ENDORSEMENTS ATTACHED AT EFFECTIVE DATE:
SEE FORM GU207 (SCHEDULE OF ENDORSEMENTS)

ENDORSEMENT

This endorsement, effective on 10/26/2024 at 12:01 A.M standard time, forms a part of

Policy No. 16 OH 0415121-24 of the HARTFORD FIRE INSURANCE CO.

Issued to ACCURACY PLUS INC,



Ross Fisher, President

SCHEDULE

	CP31H00201	6/21	NEW YORK THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICY DECLARATIONS
	CP00H00300	9/18	THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY POLICY COMMON TERMS AND CONDITIONS
	CP00H60000	9/18	THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY TAX PREPARERS & BOOKKEEPING
	RN00U00100	5/93	IN WITNESS PAGE
1	CP31H02200	8/19	NEW YORK ADDENDUM TO APPLICATION
2	CP31H00400	8/19	NEW YORK AMENDATORY ENDORSEMENT
3	CP31H01001	6/21	NEW YORK AMENDATORY ENDORSEMENT (COVERAGE PART)
4	HR31H00107	10/12	NEW YORK CANCELLATION AND NONRENEWAL ENDORSEMENT
	HG00H12900	10/16	U.S. DEPARTMENT OF THE TREASURY, OFFICE OF FOREIGN ASSETS CONTROL ("OFAC")
	HR00H09300	2/07	PRODUCER COMPENSATION NOTICE

The Hartford Premier Choice Professional Liability Policy

COMMON TERMS AND CONDITIONS

NOTICE: THE LIABILITY COVERAGE PART PROVIDES CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN: COVERAGE APPLIES ONLY TO A CLAIM FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD AND WHICH HAS BEEN REPORTED TO THE INSURER IN ACCORDANCE WITH THE APPLICABLE NOTICE PROVISIONS. COVERAGE IS SUBJECT TO THE INSURED'S PAYMENT OF THE APPLICABLE RETENTION. PAYMENTS OF DEFENSE COSTS ARE SUBJECT TO, AND REDUCE, THE AVAILABLE LIMIT OF LIABILITY. PLEASE READ THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

In consideration of the payment of the premium, the Insurer and the **Insureds** agree as follows:

I. TERMS AND CONDITIONS

- (A) All Coverage Parts included in this Policy are subject to the following Common Terms and Conditions. If any provision in these Common Terms and Conditions is inconsistent or in conflict with the terms and conditions of any Coverage Part, the terms and conditions of such Coverage Part shall control for purposes of that Coverage Part.
- (B) Except as otherwise provided by specific reference to other Coverage Parts, the terms and conditions of each Coverage Part shall apply only to such Coverage Part.

II. COMMON DEFINITIONS

The following terms, whether used in the singular or plural, shall have the meanings specified below:

- **"Affiliate"** means any insurance company controlling, controlled by or under common control with the Insurer.
- **"Application"** means the application for this Policy, including any (i) materials or written information submitted therewith or made available to the Insurer during the underwriting process, or (ii) warranty, representation or other written statement provided to the Insurer, which application shall be on file with the Insurer. Such **Application** shall be deemed a part of this Policy and attached hereto. In addition, Application includes any warranty, representation or other statement provided to us in connection with any policy of which this Policy is a renewal or replacement.
- **"Claim"** shall have the meaning specified for such term in each Coverage Part.
- **"Damages"** shall have the meaning specified for such term in each Coverage Part.
- **"Defense Costs"** means:
 - (1) reasonable legal fees and expenses, including, but not limited to, e-discovery expenses, incurred in the defense or appeal of a **Claim**;
 - (2) the costs of appeal, attachment or similar bonds, provided that the Insurer shall have no obligation to furnish such bonds.

However, **Defense Costs** shall not include:

- (a) salaries, wages, remuneration, overhead or benefit expenses associated with any **Insureds**;
- (b) any fees, expenses or costs which are incurred by or on behalf of a party which is not a covered **Insured**; or
- (c) any fees, expenses or costs which were incurred prior to the date on which the Insurer received written notice of **Claim** from the **Insured**.

- **“Domestic Partner”** means any natural person qualifying as a domestic partner under the provisions of any applicable federal, state or local law or any domestic partner relationship arrangement recognized outside of the U.S. and under the Human Resource policy of the **Insured Entity**.
- **“Effective Time”** means the actual time that a transaction is legally consummated as evidenced by the controlling documents of the transaction, including but not limited to the purchase and sale agreement, merger agreement, partnership agreement, or trust agreement.
- **“Employee”** means any natural person who was, is or shall become a(n):
 - (1) employee of an **Insured Entity** including any full time, part time, seasonal, temporary, leased, or loaned employee; or
 - (2) volunteer or intern with an **Insured Entity**.
- **“Insured Entity”** means:
 - (1) the **Named Entity**; or
 - (2) any **Subsidiary**.
- **“Insured Person”** shall have the meaning specified for such term in each Coverage Part.
- **“Insureds”** shall have the meaning specified for such term in each Coverage Part.
- **“Interrelated Wrongful Acts”** means **Wrongful Acts** that have as a common nexus any fact, circumstance, situation, event, or transaction, or series of causally connected facts, circumstances, situations, events, or transactions.
- **“Liability Coverage Part”** means any liability coverage parts, included in the policy.
- **“Loss”** means **Defense Costs** and **Damages**.
- **“Named Entity”** means the entity named in Item 1 of the Declarations.
- **“Policy Period”** means the period from the Inception Date to the Expiration Date set forth in Item 3 of the Declarations or any earlier cancellation date.
- **“Pollutants”** means any solid, liquid, gaseous or thermal irritant, nuisance or contaminant, including, without limitation, smoke, vapor, soot, fumes, acids, alkalies, chemicals, odors, noise, lead, oil or oil product, radiation, asbestos or asbestos-containing product, waste and any electric, magnetic or electromagnetic field of any frequency. Waste includes, without limitation, material to be recycled, reconditioned or reclaimed. **Pollutants** also means any substance located anywhere in the world identified on any applicable list of hazardous substances issued by any federal agency (including, nonexclusively, the Environmental Protection Agency) or any state, county, municipality or locality or counterpart thereof, or any foreign equivalent thereof.
- **“Subsidiary”** means any:
 - (1) corporation in which and so long as the **Named Entity** owns or controls, directly or indirectly, more than 50% of the outstanding securities representing the right to vote for the election of the board of directors of such corporation;
 - (2) limited liability company in which and so long as the **Named Entity** owns or controls, directly or indirectly, the right to elect, appoint or designate more than 50% of such entity’s managing members;
 - (3) corporation operated as a joint venture in which and so long as the **Named Entity** owns or controls, directly or indirectly, exactly 50% of the issued and outstanding voting stock and which, pursuant to a written agreement with the owner(s) of the remaining issued and outstanding voting stock of such corporation, the **Named Entity** solely controls the management and operation of such corporation.
- **“Wrongful Act”** shall have the meaning specified for such term in each Coverage Part.

III. COVERAGE EXTENSIONS

(A) Spousal/Domestic Partner Liability Coverage

Coverage shall apply to the lawful spouse or **Domestic Partner** of an **Insured Person** for a **Claim** made against such spouse or **Domestic Partner**, provided that:

(1) such **Claim** arises solely out of:

(a) such person's status as the spouse or **Domestic Partner** of an **Insured Person**; or

(b) such spouse or **Domestic Partner's** ownership of property sought as recovery for a **Wrongful Act**;

(2) the **Insured Person** is named and maintained in such **Claim** together with the spouse or **Domestic Partner**; and

(3) coverage of the spouse or **Domestic Partner** shall be on the same terms and conditions, including any applicable Retention, as apply to coverage of the **Insured Person** for such **Claim**.

No coverage shall apply to any **Claim** for a **Wrongful Act** of such spouse or **Domestic Partner**.

(B) Estates and Legal Representatives

In the event of the death, incapacity or bankruptcy of an **Insured Person**, any **Claim** made against the estate, heirs, legal representatives or assigns of such **Insured Person** for a **Wrongful Act** of such **Insured Person** shall be deemed to be a **Claim** made against such **Insured Person**. No coverage shall apply to any **Claim** for a **Wrongful Act** of such estate, heirs, legal representatives or assigns.

IV. LIMIT OF LIABILITY

(A) The Limit of Liability for each **Liability Coverage Part** in ITEM 4 of the Declarations shall be the maximum aggregate amount that the Insurer shall pay under such Coverage Part for all **Loss** from all **Claims** covered under such Coverage Part.

(B) If any Limit of Liability or Limit of Insurance is exhausted, the premium for this Policy shall be deemed fully earned.

V. DEFENSE COSTS

Solely with respect to all **Liability Coverage Parts**:

(A) **Defense Costs** shall be part of, and not in addition to, each applicable Limit of Liability. Payment of **Defense Costs** by the Insurer shall reduce each Limit of Liability.

(B) Notwithstanding the above, if Defense Outside the Limit of Liability is included in ITEM 4 of the Declarations, then payment of **Defense Costs** shall be in addition to such applicable Limit of Liability.

IV. RETENTION

Solely with respect to all **Liability Coverage Parts**:

(A) The Insurer shall pay **Loss** in excess of the Retention applicable to each **Claim** as specified in ITEM 5 of the Declarations.

(B) All Retentions shall be borne by the **Insureds** at their own risk.

(C) The Retention shall apply to **Defense Costs** and **Damages** covered under this Policy. If, any **Defense Costs** or **Damages** are incurred by the Insurer prior to the **Insured's** complete payment of the Retention, then the **Insureds** shall reimburse the Insurer therefor upon request.

(D) If a **Claim** is covered under more than one Coverage Part, the applicable Retention for each Coverage Part shall be applied separately to such **Claim**, provided that the maximum Retention applied to such **Claim** shall not exceed the highest of such applicable Retentions.

- (E) If the **Insured**, with the approval of the Insurer resolves a covered **Claim** through binding arbitration, non-court ordered mediation, or other similar alternative dispute resolution process, the applicable retention amount will be reduced by 50% up to a maximum of \$25,000.

VII. DEFENSE AND SETTLEMENT

Solely with respect to all **Liability Coverage Parts**:

- (A) The Insurer shall have the right and duty to defend **Claims** covered under the Policy, even if such **Claim** is groundless, false or fraudulent, provided that the Insureds give notice to the Insurer in accordance with the applicable **Liability Coverage Parts**' notice provisions.
- (B) If the Insurer has the duty to defend a **Claim**, the Insurer's duty to defend such **Claim** shall cease upon exhaustion of any applicable Limit of Liability.
- (C) The **Insureds** shall not admit or assume any liability, make any settlement offer or enter into any settlement agreement, stipulate to any judgment, or incur any **Defense Costs** regarding any **Claim** without the prior written consent of the Insurer, such consent not to be unreasonably withheld. The Insurer shall not be liable for any admission, assumption, settlement offer or agreement, stipulation, or **Defense Costs** to which it has not consented.
- (D) The Insurer shall have the right to associate itself in the defense and settlement of any **Claim** that appears reasonably likely to involve this Policy. The Insurer may make any investigation it deems appropriate in connection with any **Claim**. The Insurer may, with the written consent of the **Insureds**, settle any **Claim** for a monetary amount that the Insurer deems reasonable. The **Insured's** consent shall not be unreasonably withheld.
- (E) Notwithstanding the above, the Insurer may, with the written consent of the **Insureds**, settle any **Claim** for a monetary amount that the Insurer deems reasonable. However, if an **Insured** fails or refuses to consent to the settlement of a **Claim** as recommended by the Insurer and acceptable to a claimant, then:
- (1) the Insurer's duty to defend such **Claim**, if any, shall cease; and
 - (2) subject to the applicable Limit of Liability, the Insurer's maximum liability for such **Claim** shall be limited to the sum of:
 - (a) **Defense Costs** incurred up until such failure or refusal; plus
 - (b) 50% of **Defense Costs** incurred after such failure or refusal; plus
 - (c) **Loss** other than **Defense Costs** incurred to resolve such **Claim**, provided that if such amount exceeds the settlement amount recommended by the Insurer that the Insurer shall only be liable for 80% of the amount of such **Loss** in excess of such settlement amount.
- (F) The **Insureds** shall give to the Insurer all information and cooperation as the Insurer may reasonably request. However, if the Insurer is, in its sole discretion, able to determine coverage for cooperating **Insureds**, the failure of one **Insured Person** to cooperate with the Insurer shall not impact coverage provided to cooperating **Insureds**.

VIII. MINIMUM STANDARDS

In the event that there is an inconsistency between:

- (A) the terms and conditions that are required to meet minimum standards of a state's law (pursuant to a state amendatory endorsement attached to this Policy): and
- (B) any other term or condition of this Policy:

it is understood and agreed that, where permitted by law, the Insurer shall apply those terms and conditions of (A) or (B) above that are more favorable to the **Insured**.

IX. EXTENDED REPORTING PERIOD

Solely with respect to all **Liability Coverage Parts**:

- (A) If any **Liability Coverage Part** is cancelled or non-renewed for any reason other than non-payment of premium, the **Insureds** shall have the right to elect an extension of time to report **Claims** under such **Liability Coverage Part** (the "Extended Reporting Period").
- (B) To elect the Extended Reporting Period, the **Insureds** shall send a written notice of election of the Extended Reporting Period to the Insurer together with the premium therefor. The right to elect the Extended Reporting Period shall end unless the Insurer receives such notice and premium within sixty (60) days of cancellation or non-renewal. There shall be no right to elect the Extended Reporting Period after such time.
- (C) The premium for the Extended Reporting Period shall be that percentage specified in ITEM 9 of the Declarations of the sum of the original annual premium plus the annualized amount of any additional premium charged by the Insurer during the **Policy Period**. Such premium shall be deemed fully earned at the inception of the Extended Reporting Period.
- (D) The Extended Reporting Period shall be for the duration specified in the Declarations following the end of the **Policy Period**.
- (E) Coverage during the Extended Reporting Period shall apply to **Claims** made during the Extended Reporting Period for **Wrongful Acts** occurring prior to the earlier of the end of the **Policy Period** or the time of any transaction described in **Section XIV. CHANGES IN EXPOSURE, (C) Takeover of Named Entity**. No coverage shall apply for any **Wrongful Act** occurring after such time.
- (F) There is no separate or additional Limit of Liability for any Extended Reporting Period.
- (G) If during the Extended Reporting Period the **Insureds** first become aware of a **Wrongful Act** which occurred on or subsequent to any applicable **Retroactive Date** that may reasonably be expected to give rise to a **Claim**, and if written notice of such **Wrongful Act** is given to the Insurer during the Extended Reporting Period, including the reasons for anticipating such a **Claim**, the nature and date of the **Wrongful Act**, the identity of the **Insureds** allegedly involved, the alleged injuries or damages sustained, the names of potential claimants, and the manner in which the **Insureds** first became aware of the **Wrongful Act**, then any **Claim** subsequently made which arises from such **Wrongful Act** shall be deemed to be a **Claim** first made during the Extended Reporting Period, and therefore subject to the terms and conditions of this Policy, including, without limitation, **Section VII. DEFENSE AND SETTLEMENT** of these Common Terms and Conditions and the reporting requirements set forth in the NOTICE OF CLAIM found in the applicable **Liability Coverage Part**, on the date that the Insurer receives the above notice.

(H) Retiree extended reporting period for a sole proprietor

If you are a sole proprietor and have been continuously insured for professional liability coverage with a member of the Hartford Financial Services Group, Inc. group of companies for three or more full consecutive years, an unlimited extended reporting period will be provided without additional charge if you:

- (1) Cancel or fail to renew this policy due to your retirement from the accounting profession within the policy period; and
- (2) Cease the performance of all professional accounting services covered by this policy; and
- (3) Are fifty-five (55) years of age or older;
- (4) You must notify us in writing if this coverage is desired within sixty (60) days after the termination of the policy. This retirement extended reporting period does not apply to claims that are covered under any subsequent insurance you purchase, or that would be covered but for exhaustion of the amount of insurance applicable to such claims.

X. INTERRELATIONSHIP OF CLAIMS

Solely with respect to all **Liability Coverage Parts**:

All **Claims** based upon, arising from or in any way related to the same **Wrongful Act** or **Interrelated Wrongful Acts** shall be deemed to be a single **Claim** for all purposes under this Policy first made on the earliest date that:

- (A) any of such **Claims** was first made, regardless of whether such date is before or during the **Policy Period**;
- (B) notice of any **Wrongful Act** described above was given to the Insurer under this Policy pursuant to the section titled NOTICE OF CLAIM found in the applicable **Liability Coverage Part**; or
- (C) notice of any **Wrongful Act** described above was given under any prior management liability, professional liability or errors and omissions insurance policy if such notice is accepted under such other policy.

XI. ALLOCATION

With respect to all **Liability Coverage Parts**:

Where **Insureds** who are afforded coverage for a **Claim** incur an amount consisting of both **Loss** that is covered by this Policy and also loss that is not covered by this Policy because such **Claim** includes both covered and uncovered matters, then coverage shall apply as follows:

- (A) with respect to a covered **Claim** for which the Insurer has the duty to defend:
 - (1) 100% of the **Insured's Defense Costs** shall be allocated to covered **Loss**; and
 - (2) All other **Loss** shall be allocated between covered **Loss** and non-covered loss based upon the relative legal exposure of all parties to such matters.

XII. OTHER INSURANCE

If **Loss** arising from any **Claim** is insured under any other valid and collectible policy or policies, then this Policy shall apply only in excess of the amount of any deductibles, retentions and limits of liability under such other policy or policies, whether such other policy or policies are stated to be primary, contributory, excess, contingent or otherwise, unless such other insurance is written specifically excess of this Policy by reference in such other policy or policies to this Policy's Policy Number. Any payments made under any such policy(ies) will serve to offset any applicable retention amounts set forth in the Declarations.

XIII. CANCELLATION

- (A) The Insurer may cancel this Policy for non-payment of premium by sending not less than 10 days notice to the **Named Entity**. This Policy may not otherwise be cancelled by the Insurer.
- (B) Except as provided in **Section XIV. CHANGES IN EXPOSURE**, (C) **Takeover of Named Entity**, the **Insureds** may cancel this Policy by sending written notice of cancellation to the Insurer. Such notice shall be effective upon receipt by the Insurer unless a later cancellation time is specified therein.
- (C) If the Insurer cancels this Policy, unearned premium shall be calculated on a pro rata basis. If the **Insureds** cancel this Policy, unearned premium shall be calculated at the Insurer's customary short rates. Payment of any unearned premium shall not be a condition precedent to the effectiveness of a cancellation. The Insurer shall make payment of any unearned premium which it received from the **Insured** as soon as practicable.

XIV. CHANGES IN EXPOSURE

Solely with respect to all **Liability Coverage Parts**:

(A) Acquisitions or Created Subsidiaries

If, before or during the **Policy Period**, any **Insured Entity** acquires or creates a **Subsidiary**, then such acquired or created entity and its subsidiaries, and any natural persons that would qualify as **Insured Persons** thereof, shall be **Insureds** to the extent such entities and persons would otherwise qualify as **Insureds** under the **Liability Coverage Parts**, but only for **Wrongful Acts** occurring after the **Effective Time** of such acquisition or creation. No coverage shall be available for any **Wrongful Act** of such **Insureds** occurring before the **Effective Time** of such acquisition or creation, or for any **Interrelated Wrongful Acts** thereto.

However, if the fair value of the assets of any such acquired or created entity exceed 35% of the total assets of the **Named Entity** as reflected in its most recent consolidated financial statements prior to the **Effective Time** of such acquisition or creation, then the **Insureds** shall give the Insurer written notice and full, written details of the acquisition or creation as soon as practicable:

- (1) prior to the expiration or termination date of this Policy; or
- (2) within ninety (90) days of such acquisition or creation;

whichever date is later.

There shall be no coverage under any renewal or replacement of this Policy for any such new **Subsidiary** and its subsidiaries, and any natural persons that would qualify as **Insured Persons** thereof, unless the **Insureds** comply with the terms of this provision.

(B) Mergers

If, before or during the **Policy Period**, any **Insured Entity** merges with another entity such that the **Insured Entity** is the surviving entity, then such merged entity and its subsidiaries, and any natural persons that would qualify as **Insured Persons** thereof, shall be **Insureds** to the extent such entities and persons would otherwise qualify as **Insureds** under the **Liability Coverage Parts**, but only for **Wrongful Acts** occurring after such merger. No coverage shall be available for any **Wrongful Act** of such **Insureds** occurring before the **Effective Time** of such merger or for any **Interrelated Wrongful Acts** thereto.

However, if the fair value of the assets of any newly merged entity exceed 35% of the total assets of the **Named Entity** as reflected in its most recent consolidated financial statements prior to such merger, then the **Insureds** shall give the Insurer written notice and full, written details of the merger as soon as practicable:

- (1) prior to the expiration or termination date of this Policy; or
- (2) within ninety (90) days of such merger;

whichever date is later.

There shall be no coverage under any renewal or replacement of this Policy for any newly merged entity or any of its subsidiaries, and any natural persons that would qualify as **Insured Persons** thereof, unless the **Insureds** comply with the terms of this provision.

(C) Takeover of Named Entity

If, before or during the **Policy Period**:

- (1) the **Named Entity** merges into or consolidates with another entity such that the **Named Entity** is not the surviving entity; or

- (2) more than 50% of the securities representing the right to vote for the **Named Entity's** board of directors or managers is acquired by another person or entity, group of persons or entities, or persons and entities acting in concert,

then coverage shall continue under the **Liability Coverage Parts**, but only for **Wrongful Acts** occurring before the **Effective Time** of any such transaction. No coverage shall be available for any **Wrongful Act** occurring after the **Effective Time** of such transaction. Upon such transaction, this Policy shall not be cancelled and the entire premium for this Policy shall be deemed fully earned. The Insured shall give the Insurer written notice and full, written details of such transaction as soon as practicable if any transaction described herein occurs, then the Insurer will not be obligated to offer any renewal or replacement of this Policy.

(D) Loss of Subsidiary Status

If, before or during the **Policy Period**, any entity ceases to be a **Subsidiary**, then coverage shall be available under the **Liability Coverage Parts** for such **Subsidiary** and its **Insured Persons**, but only for a **Wrongful Act** of such **Insureds** occurring before the **Effective Time** of such transaction. No coverage shall be available for any **Wrongful Act** of such **Insureds** occurring after the **Effective Time** such transaction.

XV. SUBROGATION

- (A) The Insurer shall be subrogated to all of the **Insureds'** rights of recovery regarding any payment of **Loss** by the Insurer under this Policy. The **Insureds** shall execute all papers required and do everything necessary to secure and preserve such rights, including the execution of any documents necessary to enable the Insurer to effectively bring suit in the name of the **Insureds**. The **Insureds** shall do nothing to prejudice the Insurer's position or any potential or actual rights of recovery.
- (B) Solely with respect to all **Liability Coverage Parts**, the Insurer shall not exercise its rights of subrogation against an **Insured Person** under this Policy unless such **Insured Person** has:
- (1) obtained any personal profit, remuneration or advantage to which such **Insured Person** was not legally entitled; or
 - (2) committed a criminal or deliberately fraudulent act or omission or any willful violation of law,
- if a judgment or other final non appealable adjudication establishes such personal profit, remuneration, advantage, act, omission, or violation.

XVI. APPLICATION

- (A) The **Insureds** represent that the declarations and statements contained in the **Application** are true, accurate and complete. This Policy is issued in reliance upon the **Application**.
- (B) If the **Application** contains misrepresentations or misrepresentations that materially affect the acceptance of the risk by the Insurer:
- (1) no coverage shall be afforded under this Policy for any **Insureds** who knew on the Inception Date of this Policy of the facts that were so misrepresented, provided that knowledge possessed by any **Insured Person** shall not be imputed to any other **Insured Person**
 - (2) knowledge possessed by any principal, partner, chief executive officer, chief operating officer, general counsel, chief financial officer, risk manager, human resources director or any position equivalent to the foregoing of the an **Insured Entity**, or anyone signing the Application, shall be imputed to all **Insured Entities**. No other person's knowledge shall be imputed to an **Insured Entity**.

XVII. ACTION AGAINST THE INSURER

- (A) Solely with respect to all **Liability Coverage Parts**:

- (1) No action shall be taken against the Insurer unless there shall have been full compliance with all the terms and conditions of this Policy.
- (2) No person or organization shall have any right under this Policy to join the Insurer as a party to any **Claim** against the **Insureds** nor shall the Insurer be impleaded by the **Insureds** in any such **Claim**.

XVIII. ASSIGNMENT

Assignment of interest under this Policy shall not bind the Insurer without its consent as specified in a written endorsement issued by the Insurer to form a part of this Policy.

XIX. BANKRUPTCY OR INSOLVENCY

Bankruptcy or insolvency of any **Insureds** shall not relieve the Insurer of any of its obligations under this Policy.

XX. AUTHORIZATION OF NAMED ENTITY

The **Named Entity** shall act on behalf of all **Insureds** with respect to all matters under this Policy, including, without limitation, giving and receiving of notices regarding **Claims**, cancellation, election of the Extended Reporting Period, payment of premiums, receipt of any return premiums, and acceptance of any endorsements to this Policy.

XXI. CHANGES

This Policy shall not be changed or modified except in a written endorsement issued by the Insurer to form a part of this Policy.

XXII. ENTIRE AGREEMENT

This Policy, including the Declarations, Common Terms and Conditions, included Coverage Part(s), **Application** and any written endorsements attached hereto, constitute the entire agreement between the **Insureds** and the Insurer relating to this insurance.

XXIII. NOTICE ADDRESSES

- (A) All notices to the **Insureds** shall be sent to the **Named Entity** at the address specified in Item 1 of the Declarations.
- (B) All notices to the Insurer shall be sent to the address specified in Item 10 of the Declarations. Any such notice shall be effective upon receipt by the Insurer at such address.

XXIV. HEADINGS

The headings of the various sections of this Policy are intended for reference only and shall not be part of the terms and conditions of coverage.

XXV. REFERENCES TO LAWS

- (A) Wherever this Policy mentions any law, including, without limitation, any statute, Act or Code of the U.S., such mention shall be deemed to include all amendments of, and all rules or regulations promulgated under, such law.
- (B) Wherever this Policy mentions any law or laws, including, without limitation, any statute, Act or Code of the U.S., and such mention is followed by the phrase "or any similar law", such phrase shall be deemed to include all similar laws of all jurisdictions throughout the world, including, without limitation, statutes and any rules or regulations promulgated under such statutes.

XXVI. COVERAGE TERRITORY

Coverage under this Policy applies worldwide.

The Hartford Premier Choice Professional Liability Policy

NOTICE: THIS LIABILITY COVERAGE PART PROVIDES CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN: COVERAGE APPLIES ONLY TO A CLAIM FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD AND WHICH HAS BEEN REPORTED TO THE INSURER IN ACCORDANCE WITH THE APPLICABLE NOTICE PROVISIONS. COVERAGE IS SUBJECT TO THE INSURED'S PAYMENT OF THE APPLICABLE RETENTION. PAYMENTS OF DEFENSE COSTS ARE SUBJECT TO, AND REDUCE, THE AVAILABLE LIMIT OF LIABILITY. PLEASE READ THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

TAX PREPARERS & BOOKKEEPING PROFESSIONAL LIABILITY COVERAGE PART

I. INSURING AGREEMENTS

(A) Professional Liability

The Insurer shall pay **Loss** on behalf of the **Insureds** resulting from a **Professional Services Claim** first made against the **Insureds** during the **Policy Period** or Extended Reporting Period, if applicable, for a **Professional Services Wrongful Act** (which occurred subsequent to the **Retroactive Date**) by the **Insureds** or by any person for whose **Professional Services Wrongful Acts** the **Insureds** are legally responsible.

(B) Personal Injury Liability

The Insurer shall pay **Loss** on behalf of the **Insureds** resulting from a **Personal Injury Claim** first made against the **Insureds** during the **Policy Period** or Extended Reporting Period, if applicable, for a **Personal Injury Wrongful Act** (which occurred subsequent to the **Retroactive Date**) by the **Insureds** or by any person for whose **Personal Injury Wrongful Acts** the **Insureds** are legally responsible; or

(C) Personally Identifiable Information Liability

The Insurer shall pay **Loss** on behalf of the **Insureds** resulting from a **Personally Identifiable Information Claim** first made against the **Insureds** during the **Policy Period** or Extended Reporting Period, if applicable, for a **Personally Identifiable Information Wrongful Act** (which occurred subsequent to the **Retroactive Date**) by the **Insureds** or by any person for whose **Personally Identifiable Information Wrongful Acts** the **Insureds** are legally responsible.

II. EXTENSIONS

(A) Disciplinary Proceedings Coverage

Notwithstanding any other provisions of this Policy, but subject to all terms and conditions of this Policy, we shall pay **Defense Costs** (but not **Damages**) incurred for defending a proceeding first brought against an **Insured** during the **Policy Period** before a regulatory or governmental disciplinary official or agency alleging professional misconduct in the rendering of or failure to render **Professional Services** up to a maximum payment by us, regardless of the number of proceedings brought by a regulatory or disciplinary official or agency, of \$25,000 per **Policy Period**. This amount will not be included within (and shall not serve to reduce) the Limits of Liability and is not subject to any retention obligation of the Insured. In order to receive coverage under this provision, the **Insured** must give us written notice within thirty (30) days of receipt of any regulatory or disciplinary allegation made against any Insured and said receipt must occur after the Inception Date of this policy.

(B) Supplementary Payments

Notwithstanding any other provisions of this Policy, but subject to all terms and conditions of this Policy, we shall pay reasonable and necessary non **Defense Cost** expenses incurred with our prior written consent by an **Insured** in the investigation or litigation of any **Claim**, including actual loss of earnings up to \$500 a day for each **Insured**

because of time off from work, subject to a limit of \$10,000 for each **Insured Person** and subject to a maximum limit of \$25,000 per **Policy Period**. This amount will not be included within (and shall not reduce) the Limits of Liability.

(C) Subpoena Assistance Coverage

If during the **Policy Period** the **Insured** receives a subpoena for documents or testimony as a fact witness arising from a **Professional Services Wrongful Act** which occurred on or after the **Retroactive Date** and the **Insured** requests our assistance then we will appoint an attorney to represent the **Insured** regarding the production of documents, to prepare the **Insured** for sworn testimony, and to represent the **Insured** at their deposition provided that:

- The subpoena arises out of a lawsuit to which the **Insured** is not a party and
- The **Insured** has not been engaged to provide advice or testimony in connection with the lawsuit and the **Insured** has not been engaged to provide such advice or testimony in the past

Regardless of the number of subpoenas received or the number of individuals receiving subpoenas, the maximum limit for this coverage is \$25,000 per **Policy Period**. This amount will not be included in (and shall not serve to reduce) the Limits of Liability.

III. DEFINITIONS

The following terms, whether used in the singular or plural, shall have the meanings specified below:

- “**Client Entity(ies)**” means any individual, partnership, corporation or limited liability company, other than those that qualify as **Insureds** under this Policy, to whom the **Insured** provides **Professional Services** for a fee.
- “**Claim**” means any **Professional Services Claim**, **Personal Injury Claim** or any **Personally Identifiable Information Claim**.
- “**Computer System(s)**” means the following if leased or owned by **Insured**, **Client Entity(ies)** or operated on their behalf by a third party service provider: computers, input and output devices, network devices and equipment, peripheral devices, storage devices, back-up facilities, mobile devices, and associated computer programs, software and applications, including cloud-based computer programs, software and applications.
- “**Damages**” means the amounts, other than **Defense Costs**, that the **Insureds** are legally liable to pay solely as a result of a **Claim** covered by this **Liability Coverage Part**, including:

- (1) compensatory damages;
- (2) settlement amounts;
- (3) pre- and post-judgment interest;
- (4) costs awarded pursuant to judgments;
- (5) punitive and exemplary damages;
- (6) the multiple portion of any multiplied damage award;
- (7) claimant’s attorney fees awarded by a court.

However, **Damages** shall not include:

- (a) taxes, fines or penalties imposed by law;
- (b) equitable, injunctive or other non-monetary relief;
- (c) any other matters uninsurable pursuant to any applicable law; provided, however, that with respect to punitive and exemplary damages or the multiple portion of any multiplied damage award, the insurability of such damages shall be governed by the internal laws of any applicable jurisdiction that most favors coverage of such damages; or

- (d) any restitution, reduction, or set off of any fees, other consideration, and/or expenses paid to or charged by an **Insured** for **Professional Services**.
- “**Insured Person**” means any:
 - (1) any person who was, is now, or hereafter becomes principal, partner, officer, director, employee, or principal shareholder of the **Insured Entity**, but only if such person was performing **Professional Services** on behalf of an **Insured Entity** at the time of the alleged **Wrongful Act** or **Personal Injury**;
- “**Insured(s)**” means any:
 - (1) **Insured Entity**;
 - (2) **Insured Person**;
 - (3) any **Predecessor Firm(s)** provided a request for such coverage is made to us and approved in writing by us prior to the inception of such coverage.
- “**Personal Injury**” means injury, other than bodily injury, arising out of one or more of the following actual or alleged acts, errors or omissions committed in the performance or failure to perform **Professional Services**:
 - (1) false arrest, detention or imprisonment;
 - (2) abuse of process or malicious prosecution;
 - (3) wrongful eviction from, wrongful entry into, or the invasion of the right of private occupancy of a room, dwelling or premises that a person occupies by or on behalf of its owner, landlord or lessor; or
 - (4) the publication or utterance of a libel or slander or other defamatory or disparaging material; or publication or utterance in violation of an individual's right of privacy; or use of the name or likeness of a person in violation of an individual's right to publicity.
- “**Personal Injury Claim**” means:
 - (1) a written demand seeking monetary damages or other civil non-monetary relief against an Insured for a **Personal Injury Wrongful Act**;
 - (2) a civil proceeding, including an arbitration or other alternative dispute proceeding, commenced by the service of a complaint, filing of a demand for arbitration, or similar pleading against an Insured for a **Personal Injury Wrongful Act**; or
 - (3) a request received by an Insured to toll or waive the statute of limitations or other bars against the filing or maintenance of a lawsuit or arbitration proceeding seeking Damages against, or services from, an Insured
- “**Personal Injury Wrongful Act**” means an actual or alleged negligent act, error or omission committed in the performance of or the failure to perform **Professional Services**.
- “**Predecessor Firm**” means any firm disclosed to us which has undergone dissolution and to who's financial assets and liabilities the **Named Entity** is the majority successor in interest provided such firm is listed in the Predecessor Firm Endorsement attached to this Policy.
- “**Professional Services**” means **Tax Preparers and Bookkeeping Services** performed by the **Insured**, in the ordinary conduct of its profession, for **Client Entity(ies)** for a fee.
- “**Professional Services Claim**” means:
 - (1) a written demand seeking monetary damages or other civil non-monetary relief against an **Insured** for a **Professional Services Wrongful Act**;

- (2) a civil proceeding, including an arbitration or other alternative dispute proceeding, commenced by the service of a complaint, filing of a demand for arbitration, or similar pleading against an **Insured** for a **Professional Services Wrongful Act**; or
- (3) a request received by an **Insured** to toll or waive the statute of limitations or other bars against the filing or maintenance of a lawsuit or arbitration proceeding seeking **Damages** against, or services from, an **Insured**.
- **“Professional Services Wrongful Act”** means an actual or alleged negligent act, error or omission in the performance of or the failure to perform **Professional Services**. **Professional Services Wrongful Act** does not include a **Personal Injury Wrongful Act** or a **Personally Identifiable Information Wrongful Act**.
- **“Retroactive Date”** means the date specified in the Declarations, or in any endorsement attached to this Policy, on or after which the **Wrongful Act** must have occurred in order for any **Claim** or any notification given to us pursuant to **V. NOTICE OF CLAIM** to be covered under this Policy.
- **“Personally Identifiable Information”** means the personally identifiable information (as personally identifiable information is defined by applicable law or regulation) of a **Client Entity(ies)**.
- **“Personally Identifiable Information Claim”** means:
 - (1) a written demand seeking monetary damages or other civil non-monetary relief against an **Insured**;
 - (2) a civil proceeding, including an arbitration or other alternative dispute proceeding, commenced by the service of a complaint, filing of a demand for arbitration, or similar pleading against an **Insured**; or
 - (3) a request received by an **Insured** to toll or waive the statute of limitations or other bars against the filing or maintenance of a lawsuit or arbitration proceeding seeking **Damages** against, or services from, an **Insured**.
- **“Personally Identifiable Information Wrongful Act”** means an actual or alleged negligent failure to safeguard the personally identifiable information of a **Client Entity(ies)**, which is in the possession of the **Insured**, committed in the performance of or the failure to perform **Professional Services**.
- **Tax Preparers and Bookkeeping Services** means
 - (1) preparation of tax forms;
 - (2) tax calculation;
 - (3) representation before a tax authority by an Insured authorized to practice before such authority, in a tax collection or tax audit matter in connection with 1. or 2. above;
 - (4) services performed as a notary public, but only when performed in connection with Tax Preparers and Bookkeeping Services;
 - (5) recording numerical data in order to develop and maintain financial records;
 - (6) maintaining a general ledger and posting adjusting journal entries;
 - (7) preparing bank deposits;
 - (8) compiling data from cashiers to verify and balance receipts;
 - (9) verifying documents for mathematical accuracy and proper codes;
 - (10)balancing and reconciling billing vouchers;
 - (11)posting transactions in journals and on computer files and updating files as needed;
 - (12)reviewing computer printouts against manually maintained journals and making necessary corrections;
 - (13)reconciling computer reports and operations reports; and

(14) preparation and processing of payroll.

- “**Wrongful Act**” means any actual or alleged:

(1) **Professional Services Wrongful Act**

(2) **Personal Injury Wrongful Act**

(3) **Personally Identifiable Information Wrongful Act**

IV. EXCLUSIONS APPLICABLE TO ALL INSURING AGREEMENTS

(A) **The Insurer shall not pay Loss:**

- (1) In connection with any **Claim** based upon or arising from any bodily injury, sickness, disease, emotional distress, mental anguish, or death of any person, or damage to or destruction of any tangible property, including loss of use or diminution of value thereof; provided, however, that this exclusion shall not apply to any actual or alleged emotional distress, or mental anguish caused by **Personal Injury**;
- (2) in connection with any **Claim** based upon, arising from, or in any way related to any:
 - (a) discharge, dispersal, release, or escape of **Pollutants**, or any threat of such discharge, dispersal, release or escape; or
 - (b) direction, request or voluntary decision to test for, abate, monitor, clean up, remove, contain, treat, detoxify or neutralize **Pollutants**;
- (3) in connection with any **Claim** based upon, arising from, or in any way related to any prior or pending written demand, suit or proceeding against any **Insureds** as of the applicable Prior or Pending Date in ITEM 8 of the Declarations or the same or any substantially similar fact, circumstance or situation underlying or alleged in such demand, suit or proceeding;
- (4) in connection with any **Claim** based upon, arising from, or in any way related to any fact, circumstance or situation that, before the Inception Date in ITEM 3 of the Declarations, was the subject of any notice given under any other errors and omissions, professional liability or cyber liability insurance policy of which this **Liability Coverage Part** is a direct or indirect renewal or replacement;
- (5) in connection with any **Claim** based upon, arising from, or in any way related to the liability of others assumed under any contract or agreement, including any warranty or guarantee, provided that this exclusion shall not apply to liability:
 - (a) that would have been incurred in the absence of such contract or agreement; or
 - (b) **Claims** alleging negligent performance of **Professional Services**;
- (6) of an **Insured**, based upon, arising from, or in any way related to
 - (a) the gaining of any personal profit, remuneration or financial advantage to which such **Insured** is not legally entitled if a judgment or other non-appealable final adjudication in the underlying action establishes that such a gain did occur;
 - (b) of an **Insured**, based upon, arising from, or in any way related to any intentional **Wrongful Act** or any deliberately fraudulent act or omission or any willful violation of law by such **Insured** if a judgment or other non-appealable final adjudication in the underlying action establishes such an act, omission or violation; or
 - (c) in connection with any **Claim** based upon, arising from, or in any way related to any actual or alleged criminal acts or actions.
- (7) In connection with any **Claim** made, directly or indirectly, by or on behalf of, or with the assistance of, a former or present **Insured**.

- (8) In connection with any Claim based upon, arising from or in any way related to Professional Services performed for or on behalf of any organization if, at any time when those services were performed, the organization was or was intended to be:
- (a) directly or indirectly controlled, operated or managed by an **Insured**; or
 - (b) owned by an **Insured**, or by a spouse of any **Insured**, in a percentage which exceeds:
 - (i) five (5) percent of the issued and outstanding voting stock of the shares of a publicly traded organization; or
 - (ii) ten (10) percent of the legal and/or equitable ownership of organization
- (9) in connection with any Claim based upon, arising from, or in any way related to the actual or alleged discrimination, humiliation, harassment or misconduct by an Insured because of race, creed, color, age, gender, sexual preference or orientation, national origin, religion, disability, handicap, marital status or any other class protected under federal, state, local or other law.
- (10) In connection with any Claim made, directly or indirectly, by or on behalf of any employee, former employee of an Insured or applicant for employment.
- (11) In connection with any Claim based upon, arising from, or in any way related to the performance or failure to perform any services other than a Professional Service.
- (12) In connection with any **Claim** based upon, arising from, or in any way related to the actual or alleged
- (a) loss or misuse of an **Insureds** funds or assets
 - (b) loss or misuse of a **Client Entity(ies)** funds or assets
 - (c) loss or misuse of any other party's funds or assets
- (13) In connection with any **Claim** based upon, arising from, or in any way related to any actual or alleged:
- (a) antitrust activities
 - (b) unfair trade practices
 - (c) violation of any consumer protection laws
- (14) In connection with any **Claim** based upon, arising from, or in any way related to the actual or alleged misappropriation of advertising ideas, style of doing business or trade secrets, service mark or infringement or violation of copyright, patent, trademark or any other intellectual property rights or laws by an **Insured**.
- (15) In connection with any **Claim** based upon, arising from, or in any way related to the actual or alleged
- (a) sending of information by fax, text, email, or by any other means, where prohibited by law; or
 - (b) telephone calls using an auto dialer or other automated system, or by any other means, where prohibited by law
- (16) In connection with any **Claim** based upon, arising from, or in any way related to the actual or alleged negligent act, error or omission committed in connection with the performance or failure to perform **Professional Services** which results in or from any of the following:
- (a) the transmission of corrupting or harmful software code, including but not limited to, computer viruses, Trojan Horses, worms, spy-ware or malware;

- (b) the gaining of access to a person or entity's information utilized in e-commerce, e-mail and file transfers, by any person who is not authorized to gain such access.
 - (c) the unauthorized access or unauthorized use of a person or entity's **Computer System**;
 - (d) except for the coverage provided by Insuring **Agreement I (C), Personally Identifiable Information Liability**, the unauthorized access or unauthorized use of an **Insured's Computer System**;
 - (e) except for the coverage provided by **Insuring Agreement I (C), Personally Identifiable Information Liability**, the unauthorized disclosure of nonpublic **Personally Identifiable Information**.
- (17) In connection with any **Claim** based upon, arising from, or in any way related to the actual or alleged **Wrongful Act** which first occurred prior to the **Retroactive Date**.
- (18) In connection with any liability assumed by an **Insured** under an indemnity, hold harmless or liquidated damages provision or similar provisions or agreements, but this exclusion does not apply to liability an **Insured** would have in the absence of such agreements.
- (19) In connection with any **Claim** based upon, arising from, or in any way related to services performed by any **Insured** as:
- (a) An attorney
 - (b) An insurance agent or broker
 - (c) A financial consultant, investment advisor, securities broker or dealer
 - (d) A provider of business valuation service
 - (e) A provider of business sale or acquisition services
- (20) In connection with any **Claim** based upon or arising from or in any way related to liability arising out of loss by anyone because of a loan or investment where reliance was made on any report, audit, balance sheet or other financial, accounting or related schedule, exhibit, statement or report prepared, signed or certified by any **Insured**.
- (21) In connection with any **Claim** based upon or arising from or in any way related to representations made or opinions rendered by an **Insured** in connection with the performance or nonperformance of securities, tax shelters, mutual funds, real estate or other investments;
- (22) In connection with any **Claim** based upon or arising from or in any way related to the certification or acknowledgement of a signature without the physical appearance before the **Insured** of the person who is, or claims to be, the person signing the instrument;
- (23) In connection with any **Claim** based upon or arising from or in any way related to liability for breach of contract or agreement, whether written or oral, or the return of fees or charges for services performed by any **Insured** or the breach of warranty or guarantee to pay interest and penalties, but not additional tax assessments
- (24) Arising out of an **Insured's** activities and/or capacity as a fiduciary under the Employee Retirement Income Security Act of 1974 as amended, or similar responsibility under state statutory or common law, except if the Insured is deemed to be a fiduciary solely by reason of **Tax Preparer and Bookkeeping Services** rendered with respect to any employee benefit plan.
- (25) In connection with any **Claim** based upon or arising from or in any way related to computer or electronic information technology services performed by an "insured" involving custom software development, internet access, network design and installation, website design and hosting, systems facilities management or application services, including but not limited to, application rentals and leasing.

V. NOTICE OF CLAIM

(A) As a condition precedent to coverage under this **Liability Coverage Part**, the **Insureds** shall give the Insurer written notice of any **Claim** as soon as practicable after an **Insured** becomes aware of such **Claim**, but in no event later than

(1) if this Policy expires (or is otherwise terminated) without being renewed with the Insurer, ninety (90) days after the effective date of said expiration or termination; or 90 days after the expiration of the last policy issued by this Insurer as a renewal of this policy, whichever is later.

(2) the expiration of the Extended Reporting Period, if applicable;

provided, that if this Policy is cancelled for non payment of premium, the **Insured** will give to the Insurer written notice of such **Claim**, prior to the effective date of cancellation.

(B) If, during the **Policy Period**, the **Insureds** first become aware of a **Wrongful Act** that may reasonably be expected to give rise to a **Claim**, and, if written notice of such **Wrongful Act** is given to the Insurer during the **Policy Period**, including the reasons for anticipating such a **Claim**, the nature and date of the **Wrongful Act**, the identity of the **Insureds** allegedly involved, the alleged injuries or damages sustained, the names of potential claimants, and the manner in which the **Insureds** first became aware of the **Wrongful Act**, then any **Claim** subsequently made which arises from such **Wrongful Act** shall be deemed to be a **Claim** first made during the **Policy Period**, and therefore subject to the terms and conditions of this Policy, including, without limitation, Section VII., **DEFENSE AND SETTLEMENT** of the Common Terms and Conditions and the reporting requirements set forth in this **Liability Coverage Part**, on the date that the Insurer receives the above notice.



IN WITNESS WHEREOF, the Company has caused this policy to be executed and attested, and if required by state law, this policy shall not be valid unless countersigned by a duly authorized representative of the Company.

HARTFORD FIRE INSURANCE CO.
HOME OFFICE – HARTFORD, CONNECTICUT
ADMINISTRATIVE OFFICES - HARTFORD, CONNECTICUT
(A STOCK INSURANCE COMPANY MEMBER OF THE HARTFORD)

Kevin Barnett, Secretary

Ross Fisher, President

This endorsement, effective 12:01 am, 10/26/2024
of policy number 16 OH 0415121-24

forms part

issued to: ACCURACY PLUS INC,
by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK ADDENDUM TO APPLICATION

This endorsement modifies insurance provided under:

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM

The notice on page one (1) of the Application is deleted and replaced by the following:

NOTICE: THIS POLICY CONTAINS CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN, COVERAGE HEREUNDER APPLIES ONLY TO:

WRONGFUL ACTS OCCURRING ON OR AFTER RETROACTIVE DATE AND BEFORE THE END OF THE POLICY PERIOD IF A CLAIM ARISING THEREFROM IS FIRST MADE AGAINST ANY INSURED DURING THE POLICY PERIOD, OR ANY APPLICABLE EXTENDED REPORTING PERIOD; AND

THE CLAIM IS REPORTED IN WRITING BY THE INSURED TO THE INSURER AS SOON AS PRACTICABLE. INSURED WILL REPORT THE CLAIM TO THE INSURER AS SOON AS PRACTICABLE AFTER THE INSURED BECOMES AWARE OF SUCH CLAIM.

THIS POLICY PROVIDES NO COVERAGE FOR CLAIMS ARISING OUT OF WRONGFUL ACTS WHICH OCCURRED PRIOR TO ANY APPLICABLE RETROACTIVE DATE OR AFTER THE POLICY PERIOD. UPON TERMINATION OF SUCH COVERAGE, A NINETY (90) DAY AUTOMATIC EXTENDED REPORTING PERIOD WILL BE PROVIDED. THE INSURED WILL HAVE THE OPTION TO PURCHASE A ONE YEAR, TWO YEAR OR THREE YEAR OPTIONAL EXTENDED REPORTING PERIOD IN ACCORDANCE WITH THE TERMS AND CONDITIONS OF THE POLICY. THE PREMIUM FOR AND DURATION OF THE OPTIONAL EXTENDED REPORTING PERIOD SHALL BE STATED ON THE DECLARATIONS. THE PREMIUM FOR THE OPTIONAL EXTENDED REPORTING PERIOD SHALL BE BASED ON RATES IN EFFECT AT THE BEGINNING OF THE POLICY PERIOD.

COVERAGE GAPS MAY ARISE AT THE EXPIRATION OF THE POLICY, AUTOMATIC EXTENDED REPORTING PERIOD OR OPTIONAL EXTENDED REPORTING PERIOD. DURING THE FIRST SEVERAL YEARS OF THE CLAIMS-MADE RELATIONSHIP, CLAIMS-MADE RATES ARE COMPARATIVELY LOWER THAN OCCURRENCE RATES, AND THE INSURED CAN EXPECT SUBSTANTIAL ANNUAL PREMIUM INCREASES, INDEPENDENT OF THE OVERALL RATE LEVEL INCREASES, UNTIL THE CLAIMS-MADE RELATIONSHIP REACHES MATURITY.

A RETROACTIVE DATE MAY NOT BE CHANGED DURING THE TERM OF THE CLAIMS MADE RELATIONSHIP AND ANY EXTENDED REPORTING PERIOD.

THE LIABILITY COVERAGE PARTS ARE WRITTEN ON A DEFENSE WITHIN THE LIMITS BASIS, UNLESS OTHERWISE IDENTIFIED IN OR ENDORSED BY THE POLICY. IN THE STATE OF NEW YORK, THE LIMIT OF LIABILITY AVAILABLE TO PAY LOSS, INCLUDING JUDGMENT OR SETTLEMENT AMOUNTS, SHALL BE REDUCED OR MAY BE COMPLETELY EXHAUSTED BY THE AMOUNTS INCURRED FOR LEGAL DEFENSE AND OTHER CLAIMS EXPENSES IF THE LIMITS OF LIABILITY ARE A MINIMUM OF \$500,000. FURTHER NOTE THAT AMOUNTS INCURRED FOR LEGAL DEFENSE AND OTHER CLAIMS EXPENSES SHALL BE APPLIED AGAINST THE APPLICABLE RETENTION. ONCE THE LIMIT OF LIABILITY IS EXHAUSTED, THE INSURER SHALL NOT BE

LIABLE FOR LEGAL DEFENSE COSTS, OTHER CLAIM EXPENSES OR FOR THE AMOUNT OF ANY JUDGEMENT OR SETTLEMENT.

PLEASE READ AND REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

All other terms and conditions remain unchanged.

A handwritten signature in black ink, appearing to read "R. Fisher", is written over a faint rectangular background.

Ross Fisher, President

This endorsement, effective 12:01 am, 10/26/2024
of policy number 16 OH 0415121-24

forms part

issued to: ACCURACY PLUS INC,
by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK AMENDATORY ENDORSEMENT

This endorsement modifies insurance provided under:

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM

I. The Notice section is deleted and replaced with the following:

NOTICE: THIS POLICY CONTAINS CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN, COVERAGE HEREUNDER APPLIES ONLY TO:

WRONGFUL ACTS OCCURRING ON OR AFTER RETROACTIVE DATE AND BEFORE THE END OF THE POLICY PERIOD IF A CLAIM ARISING THEREFROM IS FIRST MADE AGAINST ANY INSURED DURING THE POLICY PERIOD, OR ANY APPLICABLE EXTENDED REPORTING PERIOD; AND

THE CLAIM IS REPORTED IN WRITING BY THE INSURED TO THE INSURER AS SOON AS PRACTICABLE. INSUREDS WILL REPORT THE CLAIM TO THE INSURER AS SOON AS PRACTICABLE AFTER THE INSURED BECOMES AWARE OF SUCH CLAIM.

THIS POLICY PROVIDES NO COVERAGE FOR CLAIMS ARISING OUT OF WRONGFUL ACTS WHICH OCCURRED PRIOR TO ANY APPLICABLE RETROACTIVE DATE OR AFTER THE POLICY PERIOD. UPON TERMINATION OF SUCH COVERAGE, A NINETY (90) DAY AUTOMATIC EXTENDED REPORTING PERIOD WILL BE PROVIDED. THE INSURED WILL HAVE THE OPTION TO PURCHASE A ONE YEAR, TWO YEAR OR THREE YEAR OPTIONAL EXTENDED REPORTING PERIOD IN ACCORDANCE WITH THE TERMS AND CONDITIONS OF THE POLICY. THE PREMIUM FOR AND DURATION OF THE OPTIONAL EXTENDED REPORTING PERIOD SHALL BE STATED ON THE DECLARATIONS. THE PREMIUM FOR THE OPTIONAL EXTENDED REPORTING PERIOD SHALL BE BASED ON RATES IN EFFECT AT THE BEGINNING OF THE POLICY PERIOD.

COVERAGE GAPS MAY ARISE AT THE EXPIRATION OF THE POLICY, AUTOMATIC EXTENDED REPORTING PERIOD OR OPTIONAL EXTENDED REPORTING PERIOD. DURING THE FIRST SEVERAL YEARS OF THE CLAIMS-MADE RELATIONSHIP, CLAIMS-MADE RATES ARE COMPARATIVELY LOWER THAN OCCURRENCE RATES, AND THE INSURED CAN EXPECT SUBSTANTIAL ANNUAL PREMIUM INCREASES, INDEPENDENT OF THE OVERALL RATE LEVEL INCREASES, UNTIL THE CLAIMS-MADE RELATIONSHIP REACHES MATURITY.

A RETROACTIVE DATE MAY NOT BE CHANGED DURING THE TERM OF THE CLAIMS MADE RELATIONSHIP AND ANY EXTENDED REPORTING PERIOD.

THE LIABILITY COVERAGE PARTS ARE WRITTEN ON A DEFENSE WITHIN THE LIMITS BASIS, UNLESS OTHERWISE IDENTIFIED IN OR ENDORSED BY THE POLICY. IN THE STATE OF NEW YORK, THE LIMIT OF LIABILITY AVAILABLE TO PAY LOSS, INCLUDING JUDGMENT OR SETTLEMENT AMOUNTS, SHALL BE REDUCED OR MAY BE COMPLETELY EXHAUSTED BY THE AMOUNTS INCURRED FOR LEGAL DEFENSE AND OTHER CLAIMS EXPENSES IF THE LIMITS OF LIABILITY ARE A MINIMUM OF \$500,000. FURTHER NOTE THAT AMOUNTS INCURRED FOR LEGAL DEFENSE AND OTHER CLAIMS EXPENSES SHALL BE APPLIED AGAINST THE APPLICABLE RETENTION. ONCE THE LIMIT OF LIABILITY IS EXHAUSTED, THE INSURER SHALL NOT BE

LIABLE FOR LEGAL DEFENSE COSTS, OTHER CLAIM EXPENSES OR FOR THE AMOUNT OF ANY JUDGEMENT OR SETTLEMENT.

PLEASE READ AND REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

II. Section II. **COMMON DEFINITIONS** is amended by the addition of the following:

- **“Termination of Coverage”** means, whether undertaken by the Insurer or the **Insured** at any time:
 - cancellation or nonrenewal of the Policy; or
 - decrease in limits, reduction of coverage, increased deductible or Retention, new exclusion, or any other change in coverage less favorable to the **Insured**.
- **“Claims-Made Relationship”** means that period of time between the effective date of the first claims-made policy between the Insurer and an Insured and the cancellation or nonrenewal of the last consecutive claims-made policy between such parties, where there has been no gap in coverage, but does not include any period covered by Extended Reporting Period coverage

III. Section II. **COMMON DEFINITIONS, Application** is deleted and replaced with the following:

- **Application** means the application for this Policy, including any (i) materials or written information submitted therewith or made available to the Insurer during the underwriting process, or (ii), representation or other written statement provided to the Insurer, which application shall be on file with the Insurer. Such **Application** shall be deemed a part of this Policy and attached hereto. In addition, Application includes any representation or other statement provided to us in connection with any policy of which this Policy is a renewal or replacement.

IV. Section II. **COMMON DEFINITIONS, Policy Period**, is deleted and replaced with the following:

- **“Policy Period”** means the period from the Inception Date set forth in ITEM 3 of the Declarations and ending with the earlier of:
 - **Termination of Coverage**, or
 - Expiration Date set forth in ITEM 3 of the Declarations

V. Section II. **COMMON DEFINITIONS, Pollutants**, is deleted and replaced with the following:

- **Pollutants** means any solid, liquid, gaseous or thermal irritant, or contaminant, including, smoke, vapor, soot, fumes, acids, alkalies, chemicals, and waste. Waste includes, material to be recycled, reconditioned or reclaimed.

VI. Section IV. **LIMIT OF LIABILITY**, is amended to include the following:

In the State of New York, the Insurer's Limit of Liability for any **Claim** for which any **Liability Coverage Part** excludes coverage for **Loss** other than **Defense Costs** or limits coverage to **Defense Costs** without providing coverage for other **Loss** shall be limited to twenty-five percent (25%) of the maximum Limit of Liability set forth in Item 4 of the Declarations for the applicable Coverage Part, unless further limited by the Policy.

VII. Section VII. **DEFENSE AND SETTLEMENT**, is amended to include the following:

- The **Insured** shall have the right to:
 - (1) select defense attorney subject to the Insurer's consent, which consent shall not be unreasonably withheld, or consent to the Insurer's choice of defense attorney, which consent shall not be unreasonably withheld.
 - (2) participate in, and assist in the direction of, the defense of any **Claim**; and
 - (3) consent to settlement, which consent shall not be unreasonably withheld, subject to Section VII. **DEFENSE AND SETTLEMENT**, paragraph (C).

- Failure to give any notice required to be given under this Policy within the time prescribed therein shall not invalidate any **Claim** made by the **Insured** or by any other claimant if it shall be shown not to have been reasonably possible to give such notice within the prescribed time and that notice was given as soon as was reasonably possible thereafter.
- In any action in which an insurer alleges that it is prejudiced by the failure of an **Insured**, to provide timely notice, the Insurer shall adhere to the law of the State of New York with respect to the burden of proof with regard to such prejudice.
- With respect to a **Claim** involving personal injury or wrongful death as those terms are defined by the New York Insurance Law, if the Insurer disclaims liability or denies coverage based on a failure to provide timely notice, then the injured person or other claimant may maintain an action directly against the Insurer, on the sole question of late notice, unless the **Insured** or the Insurer, within sixty (60) days of the disclaimer, initiates an action to declare the rights of the parties under the Policy, and names the injured person or other claimant as a party to the action.

VIII. Section **VIII. MINIMUM STANDARDS**, is deleted.

IX. Section **IX. EXTENDED REPORTING PERIOD**, is deleted and replaced with the following:

Solely with respect to all **Liability Coverage Parts**:

1. Terms Applicable to Automatic Extended Reporting Period and Optional Extended Reporting Period.

- a. Any Extended Reporting Period shall only be available for the Liability Coverage Parts.
- b. An Extended Reporting Period changes only the time within which a covered **Claim** may be made by a claimant and reported to the Insurer. All other Policy terms and conditions remain the same.
- c. This Policy has two types of Extended Reporting Period. Both the Automatic Extended Reporting Period and the Optional Extended Reporting Period:
 - (1) provide coverage for **Claims** that are first made after the **Termination of Coverage** and during the applicable Extended Reporting Period if the **Wrongful Act** occurred on or after the **Retroactive Date** and before the end of the **Policy Period**, and are otherwise covered by this Policy;
 - (2) do not extend the **Policy Period** or change the scope of coverage provided; and
 - (3) are not renewable.
- d. Within thirty (30) days after **Termination of Coverage**, the Insurer must advise the **Named Insured** in writing of the Automatic Extended Reporting Period and the availability of, the premium for, and the importance of purchasing Optional Extended Reporting Period coverage.
- e. Upon cancellation due to nonpayment of premium or fraud on the **Insured's** part, the Insurer shall not be required to provide a premium quotation for the Optional Extended Reporting Period coverage unless requested by the **Named Insured**.
- f. Where the **Termination of Coverage** is due only to a decrease in the Policy's Aggregate Limit, the Aggregate Limit, if any, for any Extended Reporting Period shall be no greater than the amount of such decrease.
- g. During a **Claims-Made Relationship** and any Extended Reporting Period, a person employed or otherwise affiliated with the **Insured** and covered by the **Insured's** Policy during such affiliation, shall continue to be covered under such Policy and any Extended Reporting Period after such affiliation has ceased for such person's covered **Claim** during such affiliation.
- h. Where a **Claims-Made Relationship** has continued for less than one (1) year, upon **Termination of Coverage** for nonpayment of premium or fraud, the Insurer is not required to do the following:
 - (1) advise the Insured of the Automatic Extended Reporting Period, and the availability of, the premium for, and the importance of purchasing Optional Extended Reporting Period coverage; or
 - (2) offer the **Insured** Optional Extended Reporting Period coverage.

- j. If during any Extended Reporting Period the **Insureds** first become aware of a **Wrongful Act** which occurred on or subsequent to any applicable **Retroactive Date** that may reasonably be expected to give rise to a **Claim**, and if written notice of such **Wrongful Act** is given to the Insurer during any Extended Reporting Period, including the reasons for anticipating such a **Claim**, the nature and date of the **Wrongful Act**, the identity of the **Insureds** allegedly involved, the alleged injuries or damages sustained, the names of potential claimants, and the manner in which the **Insureds** first became aware of the **Wrongful Act**, then any **Claim** subsequently made which arises from such **Wrongful Act** shall be deemed to be a **Claim** first made during the any Extended Reporting Period, and therefore subject to the terms and conditions of this Policy, including, without limitation, **Section VII., DEFENSE AND SETTLEMENT** of these Common Terms and Conditions and the reporting requirements set forth in the NOTICE OF CLAIM found in the applicable **Liability Coverage Part**, on the date that the Insurer receives the above notice.

2. Automatic Extended Reporting Period

- a. The Insurer will automatically provide an Automatic Extended Reporting Period upon **Termination of Coverage**.
- b. The Automatic Extended Reporting Period begins with the end of the **Policy Period** or **Termination of Coverage** and lasts for ninety (90) days.
- c. The Automatic Extended Reporting Period shall only apply to **Claims** first made against any **Insured** during the Automatic Extended Reporting Period. All such **Claims** reported will be deemed to have been made and reported on the last day of the **Policy Period**.
- d. **Claims** made after that ninety (90) day period will not be covered unless the **Insured** purchases an Optional Extended Reporting Period described in item 3. below.
- e. The Automatic Extended Reporting Period does not reinstate or increase the Limits of Liability. The Limits of Liability for the Automatic Extended Reporting Period will be part of and not in addition to, the Limits of Liability listed in the Declarations. The Aggregate Limit for the Automatic Extended Reporting Period will be equal to the amount of coverage remaining in this Policy's Aggregate Limit.

3. Optional Extended Reporting Period

- a. For an additional premium, the **Insured** shall have the option to purchase at least a one (1) year, two (2) year or three (3) year Optional Extended Reporting Period coverage. The duration and premium charge for the Optional Extended Period coverage is stated in the Declarations page of this Policy. The premium charged for the Optional Extended Reporting Period coverage shall be based upon rates for such coverage in effect on the date this Policy was issued or last renewed, and the Insurer shall not charge a different premium for such coverage due to any change in its rates, rating plans or rating rules subsequent to issuance or last renewal policy. The Optional Extended Reporting Period, if purchased, begins with the end of the Automatic Extended Reporting Period.
- b. The **Insured** shall have the greater of the following in which to submit written acceptance of the Optional Extended Reporting Period:
 - (1) sixty (60) days from the effective date of the **Termination of Coverage**, or
 - (2) thirty (30) days from the effective date of mailing or delivering of the advice of the importance of purchasing Optional Extended Reporting Period coverage.

There shall be no right to elect purchase of the Optional Extended Reporting Period after such time specified above.

- c. Where payment is due to the Insurer for coverage during the **Claims-Made Relationship**, any monies received by the Insurer from the **Insured** as payment for the Optional Extended Reporting Period shall first be applied to such payment owing to this Policy. The Optional Extended Reporting Period will not take effect until the premium owed for this Policy and this Optional Extended Reporting Period is paid in full.

- d. Optional Extended Reporting Period coverage is available only if we receive payment in full for the Optional Extended Reporting Period within thirty (30) days of the **Insured's** acceptance of Insurer's offer.
- e. The additional premium for the Optional Extended Reporting Period is fully earned at the inception of the Optional Extended Reporting Period.
- f. Once in effect, the Optional Extended Reporting Period cannot be cancelled. The Insurer need not return any part of the premium paid for any reason whatsoever.
- g. Where the Policy contains an annual Aggregate Liability Limit, the Aggregate Liability Limit, if any, for the Optional Extended Reporting Period coverage shall be at least equal to the amount of coverage remaining in the Policy's annual Aggregate Liability Limit. An Optional Extended Reporting Period does not reinstate or increase the limit of liability.
- h. Upon **Termination of Coverage**, as per **SECTION II, COMMON TERMS AND CONDITIONS, Termination of Coverage**, bullet two (2) the Insurer does not have to offer an Optional Extended Reporting Period if the Policy's limit of liability is at least \$5,000,000 per occurrence, or contains a retention of at least \$100,000 per occurrence
- i. Coverage during the Optional Extended Reporting Period shall apply to **Claims** made for **Wrongful Acts** occurring prior to the earlier of the end of the **Policy Period** or the time of any transaction described in Section **Xiv. Changes In Exposure, (C) Takeover of Named Entity**. No coverage shall apply for any **Wrongful Act** occurring after such time.
- j. A Policy issued to a corporation, partnership or other entity shall provide Extended Reporting Period coverage upon **Termination of Coverage** to any person covered under the Policy, if the **Insured** has been placed in liquidation or bankruptcy or permanently ceases operations and the **Insured** or the **Insured's** designated trustee does not purchase an Optional Extended Reporting Period, any person insured under this Policy may purchase an Optional Extended Reporting endorsement for their own interest within one hundred twenty (120) days of the **Termination of Coverage**. Such person, who purchases the Optional Extended Reporting Period, shall pay the additional premium. The Insurer shall have no obligation to provide any notice to such person of the availability of the extended reporting period. The Insurer may charge the person for who the Extended Reporting Period is provided a premium commensurate with such coverage.

4. Retiree Optional Extended Reporting Period for a sole proprietor

If you are a sole proprietor and have been continuously insured for professional liability coverage with a member of the Hartford Financial Services Group, Inc. group of companies for three or more full consecutive years, an unlimited extended reporting period will be provided without additional charge if you:

- a. Cancel or fail to renew this policy due to your retirement from the accounting profession within the policy period; and
- b. Cease the performance of all professional accounting services covered by this policy; and
- c. Are fifty-five (55) years of age or older:
- d. You must notify us in writing if this coverage is desired within sixty (60) days after you cancel or fail to renew the policy.

X. Section **XVI. APPLICATION**, paragraph (B), is deleted and replaced with the following:

(B) If the **Application** contains misrepresentations that materially affect the acceptance of the risk by the Insurer the following remedies are available; however, no misrepresentation shall be deemed material unless knowledge by the Insurer of the facts misrepresented would have led to a refusal by the Insurer to issue this Policy.

- (1)** no coverage shall be afforded under this Policy for any **Insureds** who knew on the Inception Date of this Policy of the facts that were so misrepresented, provided that knowledge possessed by any **Insured Person** shall not be imputed to any other **Insured Person**

- (2) knowledge possessed by any principal, partner, chief executive officer, chief operating officer, general counsel, chief financial officer, risk manager, human resources director or any position equivalent to the foregoing of the an **Insured Entity**, or anyone signing the Application, shall be imputed to all **Insured Entities**. No other person's knowledge shall be imputed to an **Insured Entity**.

XI. Section **XIX. BANKRUPTCY**, is deleted and replaced by the following:

Bankruptcy or insolvency of any **Insureds** or their estate shall not relieve the Insurer of any of its obligations under this Policy.

XII. Section **XXIII. NOTICE ADDRESSES**, is deleted and replaced by the following:

- (A) All notices to the **Insureds** shall be sent to the **Named Entity** at the address specified in Item 1 of the Declarations.
- (B) All notices to the Insurer shall be sent to the address specified in Item 10 of the Declarations. Any such notice shall be effective upon receipt by the Insurer at such address. Notice given by or on behalf of the **Insured**, or written notice by or on behalf of the injured person or any other claimant, to an agent of the Insurer in New York State, with particulars sufficient to identify the **Insured**, shall be deemed notice to the Insurer.

XIII. The following section is added:

● **TRANSFER OF DUTIES WHEN THE LIMIT OF INSURANCE IS EXHAUSTED**

Solely with respect to all **Liability Coverage Parts**:

- (A) If the Insurer determines that, based on **Claims** which have been reported to the Insurer and to which this insurance may apply, the applicable aggregate limit is likely to be exhausted in the payment of **Loss**, the Insurer will notify the **Insured**, in writing, to that effect.

- (B) When the Limits of Liability have been exhausted by the payment of **Loss**:

- (1) The Insurer shall notify the **Insured**, in writing, as soon as practicable, that:

(a) Such Limits of Liability have actually been exhausted; and

(b) The Insurer's duty to defend **Claims** reported under this Policy for which coverage has not been denied and subject to the Limits of Liability has also been exhausted.

- (2) The Insurer shall initiate, and cooperate in, the transfer of control, to any appropriate **Insured**, of all open **Claims** reported under this Policy for which coverage has not been denied which are subject to the Limits of Liability and which are reported to the Insurer before the Limits of Liability are exhausted. The **Insured** must cooperate in the transfer of control of said **Claims**.

The Insurer shall take such steps, as the Insurer deems appropriate, to avoid a default in, or continue the defense of, such **Claims** until such transfer is completed, provided the appropriate **Insured** is cooperating in completing such transfer.

The Insurer shall take no action whatsoever with respect to any **Claim** seeking damages that would have been subject to the Limits of Liability, had they not been exhausted, if the **Claim** is reported to the Insurer after the Limits of Liability have been exhausted.

- (3) The **Insured**, and any other **Insured** involved in a **Claim** seeking damages subject to the Limits of Liability, must arrange for the defense of such **Claim** within such time period as agreed to between the appropriate **Insured** and the Insurer. Absent any such agreement, arrangements for the defense of such **Claim** must be made as soon as practicable.

- (C) The **Insured** shall reimburse the Insurer for expenses the Insurer incurs in taking those steps the Insurer deems appropriate in accordance with paragraph B.2. of this Section.

The duty of the **Insured** to reimburse the Insurer will begin on:

- (1) The date on which the applicable Limits of Liability are exhausted, if the Insurer has notified the **Insured** in accordance with paragraph A. above; or
 - (2) The date on which the Insurer sent the notice in accordance with paragraph B. above, if the Insurer did not send notice in accordance with paragraph A. above.
- (D) The exhaustion of any Limits of Liability by the payments of **Loss**, judgments or settlements, and the resulting end of the Insurer's duty to defend, will not be affected by the Insurer's failure to comply with any of the provisions of this Condition.

All other terms and conditions remain unchanged.

A handwritten signature in black ink, appearing to read 'R. Fisher', is written over a faint rectangular background.

Ross Fisher, President

This endorsement, effective 12:01 am, 10/26/2024
of policy number 16 OH 0415121-24

forms part

issued to: ACCURACY PLUS INC,
by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**NEW YORK AMENDATORY ENDORSEMENT
(COVERAGE PART)**

This endorsement modifies insurance provided under:

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM

THE HARTFORD PREMIER CHOICE PROFESSIONAL LIABILITY INSURANCE POLICYSM is amended as follows:

- I. The Notice Section is deleted and replaced with the following:

NOTICE: THIS POLICY CONTAINS CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE SPECIFIED HEREIN, COVERAGE HEREUNDER APPLIES ONLY TO:

WRONGFUL ACTS OCCURRING ON OR AFTER RETROACTIVE DATE AND BEFORE THE END OF THE POLICY PERIOD IF A CLAIM ARISING THEREFROM IS FIRST MADE AGAINST ANY INSURED DURING THE POLICY PERIOD, OR ANY APPLICABLE EXTENDED REPORTING PERIOD; AND

THE CLAIM IS REPORTED IN WRITING BY THE INSURED TO THE INSURER AS SOON AS PRACTICABLE. INSURED WILL REPORT THE CLAIM TO THE INSURER AS SOON AS PRACTICABLE AFTER THE INSURED BECOMES AWARE OF SUCH CLAIM.

THIS POLICY PROVIDES NO COVERAGE FOR CLAIMS ARISING OUT OF WRONGFUL ACTS WHICH OCCURRED PRIOR TO ANY APPLICABLE RETROACTIVE DATE OR AFTER THE POLICY PERIOD. UPON TERMINATION OF SUCH COVERAGE, A NINETY (90) DAY AUTOMATIC EXTENDED REPORTING PERIOD WILL BE PROVIDED. THE INSURED WILL HAVE THE OPTION TO PURCHASE A ONE YEAR, TWO YEAR OR THREE YEAR OPTIONAL EXTENDED REPORTING PERIOD IN ACCORDANCE WITH THE TERMS AND CONDITIONS OF THE POLICY. THE PREMIUM FOR AND DURATION OF THE OPTIONAL EXTENDED REPORTING PERIOD SHALL BE STATED ON THE DECLARATIONS. THE PREMIUM FOR THE OPTIONAL EXTENDED REPORTING PERIOD SHALL BE BASED ON RATES IN EFFECT AT THE BEGINNING OF THE POLICY PERIOD.

COVERAGE GAPS MAY ARISE AT THE EXPIRATION OF THE POLICY, AUTOMATIC EXTENDED REPORTING PERIOD OR OPTIONAL EXTENDED REPORTING PERIOD. DURING THE FIRST SEVERAL YEARS OF THE CLAIMS-MADE RELATIONSHIP, CLAIMS-MADE RATES ARE COMPARATIVELY LOWER THAN OCCURRENCE RATES, AND THE INSURED CAN EXPECT SUBSTANTIAL ANNUAL PREMIUM INCREASES, INDEPENDENT OF THE OVERALL RATE LEVEL INCREASES, UNTIL THE CLAIMS-MADE RELATIONSHIP REACHES MATURITY.

A RETROACTIVE DATE MAY NOT BE CHANGED DURING THE TERM OF THE CLAIMS MADE RELATIONSHIP AND ANY EXTENDED REPORTING PERIOD.

THE LIABILITY COVERAGE PARTS ARE WRITTEN ON A DEFENSE WITHIN THE LIMITS BASIS, UNLESS OTHERWISE IDENTIFIED IN OR ENDORSED BY THE POLICY. IN THE STATE OF NEW YORK, THE LIMIT OF LIABILITY AVAILABLE TO PAY LOSS, INCLUDING JUDGMENT OR SETTLEMENT AMOUNTS, SHALL BE REDUCED OR MAY BE COMPLETELY EXHAUSTED BY THE AMOUNTS INCURRED FOR LEGAL DEFENSE AND

OTHER CLAIMS EXPENSES IF THE LIMITS OF LIABILITY ARE A MINIMUM OF \$500,000. FURTHER NOTE THAT AMOUNTS INCURRED FOR LEGAL DEFENSE AND OTHER CLAIMS EXPENSES SHALL BE APPLIED AGAINST THE APPLICABLE RETENTION. ONCE THE LIMIT OF LIABILITY IS EXHAUSTED, THE INSURER SHALL NOT BE LIABLE FOR LEGAL DEFENSE COSTS, OTHER CLAIM EXPENSES OR FOR THE AMOUNT OF ANY JUDGEMENT OR SETTLEMENT.

PLEASE READ AND REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

- II. Section I. **INSURING AGREEMENTS**, (A), (B), and (C) are each amended by deleting the phrase “during the **Policy Period**” and replacing it with the phrase “during the **Policy Period** or any Extended Reporting Period”.
- III. Section II. **EXTENSIONS**, paragraph (A), **Disciplinary Proceedings Coverage**, is deleted in its entirety and replaced with the following:

(A) Disciplinary Proceedings Coverage

Notwithstanding any other provisions of this Policy, but subject to all terms and conditions of this Policy, we shall pay **Defense Costs** (but not **Damages**) incurred for defending a proceeding first brought against an **Insured** during the **Policy Period** or any Extended Reporting Period before a regulatory or governmental disciplinary official or agency alleging professional misconduct in the rendering of or failure to render **Professional Services** during the **Policy Period** up to a maximum payment by us, regardless of the number of proceedings brought by a regulatory or disciplinary official or agency, of \$25,000 per **Policy Period**. This amount will not be included within (and shall not serve to reduce) the Limits of Liability and is not subject to any retention obligation of the Insured. In order to receive coverage under this provision, the **Insured** must give us written notice within thirty (30) days of receipt of any regulatory or disciplinary allegation made against any Insured and said receipt must occur after the Inception Date of this policy.

Failure to give any notice required to be given under this Policy within the time prescribed therein shall not invalidate any **Claim** made by the **Insured** or by any other claimant if it shall be shown not to have been reasonably possible to give such notice within the prescribed time and that notice was given as soon as was reasonably possible thereafter.

- IV. Section III. **DEFINITIONS**, the definition of “**Damages**”, is amended to include the following:
 - In the State of New York, **Damages** does not include punitive, exemplary and multiplied damages.
 - In the State of New York, post judgment interest shall not reduce the Limit of Liability.
- V. Section V., **NOTICE OF CLAIM**, paragraphs (A) and (B), are deleted and replaced with the following:

(A) As a condition precedent to coverage under this **Liability Coverage Part**, the **Insureds** shall give the Insurer written notice of any **Claim** as soon as practicable after an **Insured** becomes aware of such **Claim**, but in no event later than:

 - (1)** if this Policy expires (or is otherwise terminated) without being renewed with the Insurer, ninety (90) days after the effective date of said expiration or termination; or 90 days after the expiration of the last policy issued by this Insurer as a renewal of this policy, whichever is later;
 - (2)** the expiration of the Optional Extended Reporting Period, if applicable;

provided, that if this Policy is cancelled for non payment of premium, the **Insured** will give to the Insurer written notice of such **Claim**, prior to the effective date of cancellation.

(B) If, during the **Policy Period**, the **Insureds** first become aware of a **Wrongful Act** that may reasonably be expected to give rise to a **Claim**, and, if written notice of such **Wrongful Act** is given to the Insurer during the **Policy Period** or within ninety (90) days following the expiration of the **Policy Period**, including the reasons for anticipating such a **Claim**, the nature and date of the **Wrongful Act**, the identity of the **Insureds** allegedly involved, the alleged injuries or damages sustained, the names of potential claimants, and the manner in which the **Insureds** first became aware of the **Wrongful Act**, then any **Claim** subsequently made which arises from such **Wrongful Act** shall be deemed to be a **Claim** first made during the **Policy Period**, and therefore subject to the terms and conditions of this Policy, including, without limitation, Section VII. **DEFENSE AND SETTLEMENT** of the Common Terms and Conditions and

the reporting requirements set forth in this **Liability Coverage Part**, on the date that the Insurer receives the above notice.

VI. If purchased, the following only applies to INTERIOR DECORATOR PROFESSIONAL LIABILITY COVERAGE PART:

Section IV. **EXCLUSIONS APPLICABLE TO ALL INSURING AGREEMENTS**, paragraphs (22), (23) and (24) are deleted in their entirety.

VII. If purchased, the following only applies to REAL ESTATE AGENT PROFESSIONAL LIABILITY COVERAGE PART:

Section IV. **EXCLUSIONS APPLICABLE TO ALL INSURING AGREEMENTS**, paragraph (22) is deleted and replaced with the following:

In connection with any **Claim** based upon, arising from or in any way related to actual or alleged discrimination, humiliation, harassment or misconduct by an **Insured** because of race, creed, color, age, gender, sex, sexual preference or orientation, national origin, religion, disability, handicap, marital status or any other class protected under federal, state, local or other law.

VIII. If purchased, the following only applies to HOME INSPECTORS PROFESSIONAL LIABILITY COVERAGE PART

Section IV. **EXCLUSIONS APPLICABLE TO ALL INSURING AGREEMENTS**, paragraph (28), deleted in its entirety.

All other terms and conditions remain unchanged.

A handwritten signature in black ink, appearing to read "Ross Fisher", is positioned above the printed name.

Ross Fisher, President

This endorsement, effective 12:01 am, 10/26/2024
of policy number 16 OH 0415121-24

forms part

issued to: ACCURACY PLUS INC,

by: HARTFORD FIRE INSURANCE CO.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CANCELLATION AND NONRENEWAL ENDORSEMENT

Wherever used in this endorsement: 1) "**Insurer**" means the insurance company which issued this policy; and 2) "**Insured**" means the Name of Insured, Name of Company, Name of Partnership, Parent Company, Name of Insured Plan or Trust, Name of Insured Entity, Named Entity, Named Real Estate Investment Trust(s), Name of Sponsor Company or Insured stated in ITEM A or ITEM 1 of the Declarations Page.

The Cancellation provision of this Policy is deleted and replaced by the following:

NOTICE OF CANCELLATION PROVISION

- A. This Policy may be canceled by the **Insured** by surrender of this Policy to the **Insurer** or by mailing to the **Insurer** written Notice of Cancellation stating when thereafter such cancellation shall be effective.
- B. If this Policy has been in effect for sixty (60) days or less and is not a renewal of a policy issued by the **Insurer**, then this Policy may be canceled by the **Insurer** by mailing to the **Insured**, and to the authorized insurance agent or broker, a written notice not less than twenty (20) days before the effective date of cancellation; provided, however, that if the cancellation is for one or more of the reasons cited in sub-paragraphs 1) - 8) of paragraph C below, then no cancellation shall become effective unless written notice is mailed to the **Insured** and to the authorized agent or broker fifteen (15) days prior to the effective date of cancellation.
- C. If this Policy has been in effect for more than sixty (60) days or is a renewal of a policy issued by the **Insurer**, then this Policy may be canceled by the **Insurer** by mailing to the **Insured**, and to the authorized insurance agent or broker, a written notice stating when not less than fifteen (15) days thereafter the cancellation shall be effective. Such cancellation must be based on one or more of the following.
 - 1) non-payment of premium;
 - 2) conviction of a crime arising out of acts increasing the hazard insured against;
 - 3) discovery of fraud or material misrepresentation in the obtaining of this Policy or in the presentation of a **Claim** thereunder;
 - 4) after issuance of this Policy or after the last renewal date, discovery of an act or omission, or a violation of any policy condition that substantially and materially increases the hazard insured against, and which occurred subsequent to the inception of the current policy period;
 - 5) material change in the nature or extent of the risk, occurring after issuance or last annual renewal anniversary date of this Policy, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time this Policy was issued or last renewed;
 - 6) a determination by the New York Superintendent of Insurance that continuation of the **Insurer's** present premium volume would jeopardize the **Insurer's** solvency or be hazardous to the interests of the **Insurer's** policyholders, creditors or the public;
 - 7) a determination by the New York Superintendent of Insurance that the continuation of this Policy would violate, or would place the **Insurer** in violation of any provision of the New York Insurance Law; or

- 8) with respect to a professional liability policy, revocation or suspension of the **Insured's** license to practice his/her profession or if the insured is a hospital, it no longer possesses a valid operating certificate under the public health law.
- D. Notice of Cancellation will contain the reason for cancellation and be mailed or delivered to the **Insured**, at the address shown on this Policy, and to the **Insured's** authorized agent or broker.
- E. If the Policy is cancelled for nonpayment of premium, the Notice of Cancellation shall inform the **Insured** of the amount due.
- F. If this Policy shall be cancelled by the **Insured**, the **Insurer** will retain the customary short rate proportion of the premium hereon. If this Policy shall be canceled by the **Insurer**, the **Insurer** will retain the pro rata proportion of the premium hereon. Payment or tender of any unearned premium by the **Insurer** shall not be a condition of cancellation, but such payment shall be made as soon as practicable.

The following provisions are added:

NOTICE OF NONRENEWAL PROVISION

- A. The **Insurer** will mail to the **Insured**, and to the authorized insurance agent or broker, written notice indicating the **Insurer's** intention not to renew this Policy at least thirty (30) days, yet no more than one hundred and twenty (120), days in advance of the expiration date of the Policy, for an excess Policy or a Policy issued to a jumbo risk; or sixty (60), yet no more than one hundred and twenty (120) days in advance of the expiration date of this Policy for all other policies.
- B. Notice of Nonrenewal shall be mailed to the **Insured** at the last address known to the **Insurer** and to the authorized agent or broker. The Notice of Nonrenewal will contain the reason for non-renewal.
- C. In the event that the Notice of Nonrenewal is provided by the **Insurer** less than the advance notice requirement as stated in paragraph A. of this section but prior to the expiration date of the Policy, coverage shall remain in effect on the same terms and conditions of the expiring policy for sixty (60) days beyond the date such notice is mailed or delivered to the **Insured** at the lower of the current rates or the prior **Policy Period's** rates. Any such extension of the Policy shall not create a new annual aggregate liability limit (if any), except that the annual aggregate limit of the expiring policy shall be increased in proportion to the policy extension.
- D. All of the above provisions regarding notice of cancellation or non-renewal shall not apply if the **Insured**, such **Insured's** authorized agent or broker, or another insurer of the **Insured** has mailed or delivered written notice to the **Insurer** that this Policy has been replaced or is no longer desired.

NOTICE OF CONDITIONAL RENEWAL PROVISION

- A. The **Insurer** will send a Notice of Conditional Renewal thirty (30) days for an excess Policy or a Policy issued to a jumbo risk or sixty (60) days for all other policies, but not more than one hundred and twenty (120) days prior to the expiration date of this Policy to the **Insured** and the **Insured's** agent or broker at the last address known to the **Insurer**, if the **Insurer**:
 - 1. changes the limits of liability;
 - 2. changes the type of coverage under this Policy;
 - 3. reduces coverage under this Policy;
 - 4. increases deductible of this Policy;
 - 5. adds an exclusion to this Policy; or
 - 6. may increase the premiums in excess of ten percent (10%) (exclusive of any premium increase generated as a result of increased exposure units or as a result of experience rating, loss rating, retrospective rating or audit).
- B. The Notice of Conditional Renewal will contain the reason(s) for conditional renewal as stated in paragraph (A) items 1 - 6 of this provision.
- C. If the **Insurer** cannot determine whether it will conditionally renew this Policy, the **Insurer** will send an Alternative Notice to the **Insured** at the last address known to the **Insurer**. The Alternative Notice will advise the **Insured** that as soon as possible the **Insurer** will send a second notice to the **Insured** indicating the **Insurer's** exact intention. Coverage will remain

in effect under the same terms, conditions, rates as the expiring policy until sixty (60) days after the second notice, Notice of Conditional Renewal, is sent to the **Insured**.

- D. Any extension of the Policy to comply with this provision shall not create a new annual aggregate limit (if any). However, the annual aggregate limit shall be increased in proportion to the Policy's extension; provided that there shall be no such increase if the Insured elects to accept the conditional renewal, in which case a new annual aggregate limit (if any) shall become effective as of the inception date of the renewal, subject to regulations promulgated by the superintendent.
- E. All of the above provisions regarding Notice of Conditional Renewal shall not apply if (i) the policy qualifies as a hyper-limits excess liability policy or (ii) the **Insured**, such **Insured**'s authorized agent or broker, or another insurer of the **Insured** has mailed or delivered written notice to the **Insurer** that this Policy has been replaced or is no longer desired.

LOSS INFORMATION PROVISION

Upon written request by the **Insured** or the **Insured**'s authorized agent or broker, the **Insurer** shall mail or deliver the following loss information covering a period of years specified by the Superintendent of Insurance by regulation or the period of time coverage has been provided by the **Insurer**, whichever is less, within ten (10) days of such request:

- A. information of closed claims, including date and description of occurrence and any payments;
- B. information of open claims, including date and description of occurrence, and amounts of any payments; and
- C. information on notice of any occurrences, including date and description of occurrence.

All other terms and conditions remain unchanged.

A handwritten signature in black ink, appearing to read 'R. Fisher', is written in a cursive style.

Ross Fisher, President



U.S. DEPARTMENT OF THE TREASURY, OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by the United States. **Please read this Notice carefully.**

The Office of Foreign Assets Control ("OFAC") of the U.S. Department of the Treasury administers and enforces economic and trade sanctions based on U.S. foreign policy and national security goals against targeted foreign countries and regimes, terrorists, international narcotics traffickers, those engaged in activities related to the proliferation of weapons of mass destruction, and other threats to the national security, foreign policy or economy of the United States. OFAC acts under Presidential national emergency powers, as well as authority granted by specific legislation, to impose controls on transactions and freeze assets under U.S. jurisdiction. OFAC publishes a list of individuals and companies owned or controlled by, or acting for or on behalf of, targeted countries. It also lists individuals, groups, and entities, such as terrorists and narcotics traffickers designated under programs that are not country-specific. Collectively, such individuals and companies are called "Specially Designated Nationals and Blocked Persons" or "SDNs". Their assets are blocked and U.S. persons are generally prohibited from dealing with them. This list can be located on OFAC's web site at — <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is an SDN, as identified by OFAC, the policy is a blocked contract and all dealings with it must involve OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC.



Producer Compensation Notice

You can review and obtain information on The Hartford's
producer compensation practices at www.thehartford.com
or at 1-800-592-5717.